

VACCINATION PROGRAM SCHEDULE

This Vaccination Program Schedule (“**Schedule**”) is entered into and governed by the Health Services Agreement, entered into on or about January, 2019, by and between Healthy Schools, LLC. (“**Healthy Schools**”) and Brecksville-Broadview Heights City School District (“**Customer**”) (the “**Agreement**”). This Schedule is effective as of the last signature date below.

1. **Vaccination Program.** As part of an initiative to improve public health and ensure that recommended vaccinations are available to all school-age children and school staff, the parties have entered into this Agreement. Healthy Schools, through its licensed healthcare workers, provides vaccination services, including the vaccine. Customer wishes to engage the services of Healthy Schools to provide licensed healthcare workers, support staff, and supplies to administer the vaccine to Customer’s students, as described in this Schedule (the “**Vaccination Program**”). The following vaccinations shall be provided in connection with this Schedule: Influenza, Tdap, MCV4.

2. **Healthy Schools Obligations.**

2.1 Supplies. Healthy Schools will supply all needed medical supplies, including syringes, needles, isopropyl alcohol, gloves, band aids and sharps biohazard containers for proper disposal.

2.2 Vaccine. Healthy Schools will supply the vaccine as identified by the CDC as appropriate for that treatment year. At all times, Healthy Schools will have exclusive ownership and control over its vaccine supply.

2.3 Vaccine Control. Healthy Schools will transport, store and handle the vaccine in accordance with the Vaccine Storage and Handling Recommendations promulgated by the Department of Health and Human Services (DHHS) and CDC and Prevention Recommendations for Storage and Handling of Selected Biologicals. Healthy Schools shall handle the vaccine in accordance with the package insert provided with the vaccine including compliance with cold chain requirements at vaccination sites.

2.4 Information Sheet. Healthy Schools will provide a current Vaccine Information Sheet to each individual before vaccination and answer questions about the benefits and risks of vaccination for all individuals or their guardians.

2.5 Administration of Vaccine. Healthy Schools will administer the vaccine according to the recommendations and guidance issued by the CDC and vaccine manufacturer.

2.6 Records. Healthy Schools will keep a record of the administration by individual name, date, site, vaccine type and lot number, and name of immunization provider for the vaccines it administers. Healthy Schools will record the administration of the vaccine into its cloud Services and make such records available for access by Customer. Healthy Schools will also

maintain records of the Informed and Express Consent to Treatment Form for each individual that has received services. Records must be kept for a minimum of three years following vaccination.

2.7 Publicity. Healthy Schools will obtain the approval of Customer prior to distributing any documents, consent forms, announcements, emails, advertising posters or documents regarding any vaccination event or any document indicating the approval by or involvement with Customer. Healthy Schools shall also provide its contact information for the use of parents and/or guardians.

2.8 No Re-Use. Healthy Schools acknowledges that vaccines, syringes, or needles cannot be reused.

2.9 Licensure Required. Healthy Schools healthcare professionals that administer vaccinations must be licensed in the relevant state.

2.10 Background Screening. Healthy Schools will comply with all applicable laws and regulations, including those relating to background screenings for all Healthy Schools staff at Healthy Schools's cost.

2.11 Digital Platform. Healthy Schools will provide its cloud Services for parent outreach, parent sign up and clinic management.

3. Customer Obligations.

3.1 Customer commits to combining the consent collection process for the Vaccination Program with the process of new student enrollment and annual registration for returning students ensuring relevant consent forms are included in its documentation/back to school packets, whether provided electronically or in hard copy form to parents or guardians. Customer understands that the success of the Vaccination Program is dependent on Customer fulfilling this obligation.

3.2 Locations for vaccine administration shall be determined by Customer Superintendent or his/her designee. Site locations will be given to the Healthy Schools no later than May 2019.

3.3 Healthy Schools shall not be responsible for any costs for the use of the school facility so long as the Healthy Schools complies with the hours previously agreed upon by the parties and causes no damage to the facility.

3.4 The facilities shall be used by the Healthy Schools, its staff, and Customer's staff as a point of distribution for dispensing the vaccine and related materials as a measure to protect the public health.

3.5 Access to all enrolled students will be granted to Healthy Schools by Customer Superintendent for the Customer vaccination event.

3.6 Customer will assist Healthy Schools in the marketing and outreach for the vaccination program to Customer families. In particular, Customer will perform those tasks identified in Exhibit A Statement of Work, with regard to these activities. Customer understands and agrees that performance of those tasks is critical to the success of the Vaccination Program.

3.7 Connecting Healthy Schools digital platform, to customer Student Information System.

3.8 Customer will ensure all schools collect and report the number of vaccination paper forms returned seven (7) days and three (3) days prior to the vaccination event. Failure to do so will result in cancellation of the event.

4. **Eligibility.** Healthy Schools will only administer vaccines to individuals who present a signed Informed and Express Consent to Treatment Form. Minors must have said consent form signed by their custodial parent or legal guardian including any information regarding third party payor coverage. Healthy Schools will provide vaccinations to individuals in accordance with CDC guidelines and accepted standards of medical practice. Individuals will not be refused due to lack of insurance or inability to pay an administrative fee under Florida's Vaccines for Children Program.

5. **No Fees.** Healthy Schools will perform and provide the Vaccination Program at no cost to Customer. Healthy Schools may contact and bill any appropriate third-party payer, including, but not limited to commercial insurance carriers or Medicaid as identified on the Informed and Express Consent to Treatment Form.

6. **General.** Capitalized terms, not otherwise defined herein, shall have the meanings assigned to them in the Agreement. Except as set forth herein, all other terms and conditions of the Agreement shall remain in full force and effect; provided, however, in the event of any conflict between the terms of this Schedule and the Agreement, the terms of this Schedule shall control. No amendment or modification of this Schedule shall be effective unless signed by authorized representatives of both parties. This Agreement and applicable Schedules constitute the entire agreement of the parties concerning its subject matter and supersedes all prior oral and written agreements, representations and understandings between the parties concerning such subject matter.

CUSTOMER

HEALTHY SCHOOLS, LLC.

By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

Parent Engagement Plan

District Name: _____

The purpose of this document is to clearly define the process with which the school district and Healthy Schools will communicate and outreach to parents.

I. Relevant personnel – contacts for implementation and outreach

	Contact name	Contact title	Contact email	Contact phone
Primary technical contact				
Primary health services contact				
Student registration contact				
Parent outreach contact				
Clinic Ops contact				

II. District Partnership

- A. District agrees to include the consent collection process for the Vaccination Program with the process of new student enrollment and annual registration for returning students ensuring relevant consent forms are included in its documentation/back to school
- B. District approves the use of district logo and name on all program materials and collateral
- C. District gives Healthy Schools permission to send emails on behalf of the district
- D. District will forward or include Healthy Schools in parent communications
- E. District grants permission for Healthy Schools to contact and meet with Principals, office and school staff in all schools
- F. District allows Healthy Schools to participate in Back To School night and Parent Teacher Night events
- G. District grants permission for Healthy Schools to interview or send surveys to schools and parents about their experience

III. Outreach schedule – School district agrees to the following key activities.

Activity	Dates	Comment
School contacts: Send list of all teachers, principals, secretarial staff, Parent Organization (PTA, Booster clubs) leaders with contact details	(2 weeks after contract signed)	
Enrollment/registration integration: Combine the consent collection process for the Vaccination Program with the process of new student enrollment and annual registration for returning students ensuring relevant consent forms are included in its documentation/back to school packets, whether provided electronically or in hard copy form to parents or guardians.	(BTS)	
Robocalls: Send 2-3 robocalls at the district and/or school level to all students	(BTS + 2 wks pre registr deadline)	
Emails: Send 3 emails at the district and/or school level to all students	(BTS + 2 wks pre registr deadline)	
SMS: Send 2 SMS blasts at the district and/or school level to all students	(BTS + 2 wks pre registr deadline)	
Social media posts: Post 3 times on Facebook and Twitter from the district and every school's social pages	(BTS + 2 wks pre registr deadline)	
Banner ads: Placement on district and all school websites during back to school up until the registration deadline	(BTS + 2 wks pre registr deadline)	
Parent portal: Placement in parent portal	(BTS + 2 wks pre registr deadline)	
Parent newsletters: Ad placement in newsletters	(BTS + 2 wks pre registr deadline)	
School staff newsletters: Ad placement in newsletters	(BTS + 2 wks pre registr deadline)	
On-campus signage: Signs displayed on school campuses where parents can see them (ie parking lot)	(BTS + 2 wks pre registr deadline)	

Health Services Agreement

This Health Services Agreement (“**Agreement**”) is made as of the last signature date below (“**Effective Date**”) by and between the entity identified below (“**Customer**”) and CareDox, Inc. (“**CareDox**”). CareDox and Customer may be referred in this Agreement, individually, as a “**Party**” or, collectively, as the “**Parties**.”

1. **Overview.** Customer desires to obtain and CareDox desires to provide certain health-related services (e.g., vaccination programs, school physicals, and other similar services) (collectively, the “**Health Services**”). The specific Health Services to be provided will be agreed upon by the parties in one or more schedules to this Agreement (each, a “**Schedule**”). Each Schedule will identify the relevant Health Services, term for performance, applicable fees, if any, and such other terms as may be appropriate. No Schedule will be binding unless and until signed by both parties.

2. **Cooperation and Performance.** The Parties will reasonably cooperate with each other in the performance of the Health Services, including performing all tasks and duties assigned to them in the Schedules. To the extent applicable law requires the personnel assigned by CareDox to perform the Health Services to be licensed healthcare professionals, CareDox shall be responsible for ensuring all such personnel are properly licensed and appropriate background checks conducted in conformance with applicable law.

3. **Term.** This Agreement will become effective on the last signature date of the Parties (the “**Effective Date**”) and continue thereafter until all Schedules have been completed. In the event no Schedules are pending, either Party may terminate this Agreement on written notice to the other Party.

4. **Privacy.** CareDox maintains a privacy policy which may be viewed at [www.caredox.com/caredox-privacy-policy]. CareDox and Customer represent that they each comply with all data privacy laws applicable to the data collected and stored on CareDox.

5. **Family Educational Rights and Privacy** In the event that Customer is subject to the Family Educational Rights and Privacy Act (“**FERPA**”), Customer appoints CareDox as a “school official,” as that term is defined in FERPA, with a “legitimate educational interest” for the purpose of delivering the Health Services as contemplated by this Agreement. Customer agrees that it has obtained any necessary written consents from parents of students under the age of eighteen (18) and students age eighteen (18) and older in order to upload student data to CareDox.

In the event that Customer is subject to FERPA, CareDox agrees that it will be bound by relevant provisions of FERPA, including operating under the direct control of Customer with respect to its handling of “personally identifiable information” from “education records,” as those terms are defined under FERPA. CareDox further agrees that “personally identifiable information” from “education records” will be used only to fulfill CareDox’s responsibilities under this Agreement, and will not be disclosed to third parties except as required to provide services to Customer contemplated in this Agreement, or otherwise as expressly permitted by FERPA and other applicable laws, without signed

and dated written consent of the parent/legal guardian of a student under the age of 18, or of the student age 18 and older.

It is Customer’s responsibility to respond to requests for “education records” received by CareDox from third parties.

6. **Information Security.** CareDox maintains and enforces commercially reasonable practices, including administrative, technical, and physical safeguards to reasonably protect the confidentiality, availability, and integrity of Customer and End User data in alignment with requirements of applicable laws and regulations, including the Health Insurance Portability and Accountability Act (HIPAA). This includes, but is not limited to, encryption of data in transit when submitted across the Internet, access controls, firewalls and user authentication protocols. The Internet, however, is not entirely secured, and CareDox will not be responsible for security incidents not reasonably within its control.

If required by applicable laws, CareDox will promptly report to Customer any unauthorized access to Customer Data and, in the event that further notification is required by law, will support Customer notification to its End Users.

7. **Customer Data.** Customer grants CareDox a non-exclusive, world-wide, royalty-free license to use the documents, information, graphics, data, content, and other materials input by Customer into the Health Services (the “**Customer Data**”) solely for the purposes of executing the Health Services described in this Agreement. Customer will be responsible for obtaining all rights, permissions, and authorizations to provide the Customer Data to CareDox for use as specified under this Agreement. At Customer’s discretion and subject to Customer’s rights under FERPA, CareDox may import data from third parties to add to Customer’s data hosted by CareDox. Customer represents that it will obtain and maintain all necessary agreements with such third parties to authorize CareDox to do so on Customer’s behalf. Except for the license granted in this Section, nothing contained in this Agreement will be construed as granting CareDox any right, title, or interest in the Customer Data.

8. **Deidentified Data.** Notwithstanding the limitations in Section 12, CareDox may create and retain aggregated, deidentified information from Customer Data, including Customer’s student data to demonstrate the effectiveness of CareDox Health Services, including in CareDox marketing materials, to improve CareDox Health Services and to develop and improve other educational products. All data will be deidentified in accordance with the standards set forth in FERPA and HIPAA.

9. **Warranties.** Each Party represents and warrants it (i) has full power, capacity, and authority to enter into this Agreement and to grant the license set forth in Section 12 (Customer Data); and (ii) will comply with all federal, state and local laws, rules and regulations applicable to its performance of this Agreement. EXCEPT AS PROVIDED IN THIS SECTION NEITHER PARTY MAKES ANY OTHER WARRANTIES, EXPRESS OR IMPLIED, TO THE OTHER PARTY. EACH PARTY DISCLAIMS ALL OTHER WARRANTIES, EXPRESS AND IMPLIED, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, QUIET

Health Services Agreement

ENJOYMENT, QUALITY OF INFORMATION, AND TITLE/NON-INFRINGEMENT. NO ORAL OR WRITTEN INFORMATION OR ADVICE GIVEN BY CAREDOX OR ITS AUTHORIZED REPRESENTATIVES WILL CREATE A WARRANTY OR IN ANY WAY INCREASE THE SCOPE OF CAREDOX'S OBLIGATIONS HEREUNDER.

10. Indemnification. CareDox shall defend, indemnify, and hold harmless the Customer and its respective elected/appointed officials, employees, departments, agencies, agents and volunteers (collectively the "**Indemnified Parties**") against any third party liabilities, claims, demands, suits (and any costs, judgments and settlement amounts associated therewith) that arise from (i) the breach of CareDox's confidentiality and security obligations under this Agreement that results in an authorized use of or access to Customer Data; or (ii) CareDox's violation of applicable law, provided CareDox receives (i) prompt notice in writing of such claim; (ii) sole control over the defense and settlement thereof; and (iii) reasonable cooperation from Indemnified Parties, as applicable, at CareDox's expense in response to a CareDox request for assistance.

11. Confidentiality. Each party may disclose to the other certain non-public information or materials relating to a party's products, intellectual property, business, marketing programs and efforts, personally identifiable information of the party's personnel, End Users, students and customers, and other confidential information and trade secrets ("**Confidential Information**"). Confidential Information does not include information that: (a) is or becomes publicly available through no breach by the receiving party of this Agreement; (b) was previously known to the receiving party prior to the date of disclosure, as evidenced by contemporaneous written records; (c) was acquired from a third party without any breach of any obligation of confidentiality; (d) was independently developed by a party hereto without reference to Confidential Information of the other party; or (e) is required to be disclosed pursuant to a subpoena or other similar order of any court or government agency, provided, however, that the party receiving such subpoena or order shall, when legally permissible, promptly inform the other party in writing and provide a copy thereof, and shall only disclose that Confidential Information necessary to comply with such subpoena or order. Except as expressly provided herein, the receiving party will not use or disclose any Confidential Information of the disclosing party without the disclosing party's prior written consent, except disclosure to and subsequent uses by the receiving party's employees or consultants on a need-to-know basis, provided that such employees or consultants have executed written agreements restricting use or disclosure of such Confidential Information that are at least as restrictive as the receiving party's obligations under this Section. The receiving party agrees to use at least the same care and precaution in protecting such Confidential Information as the receiving party uses to protect the receiving party's own Confidential Information, and in no event less than reasonable care. Each party acknowledges that due to the unique nature of the other party's Confidential Information, the disclosing party may not have an adequate remedy solely in money or damages in the event of any unauthorized use or disclosure of its Confidential Information. In addition to any other remedies that may be available in law, in equity or otherwise, the disclosing party shall

be entitled to seek injunctive relief to prevent such unauthorized use or disclosure.

12. Limitation of Liability and Damages. EXCEPT AS PROVIDED BELOW, NEITHER CAREDOX NOR ITS VENDORS AND LICENSORS WILL HAVE ANY LIABILITY TO CUSTOMER OR ANY THIRD PARTY FOR ANY LOSS OF PROFITS, SALES, TRADING LOSSES, BUSINESS, DATA, OR OTHER INCIDENTAL, CONSEQUENTIAL, OR SPECIAL LOSS OR DAMAGE, INCLUDING EXEMPLARY AND PUNITIVE, OF ANY KIND OR NATURE RESULTING FROM OR ARISING OUT OF THIS AGREEMENT, INCLUDING USE OF OR INABILITY TO USE THE HEALTH SERVICES. EXCEPT AS PROVIDED BELOW, THE TOTAL LIABILITY OF CAREDOX AND ITS VENDORS AND LICENSORS TO CUSTOMER OR ANY THIRD PARTY ARISING OUT OF THIS AGREEMENT OR USE OF THE HEALTH SERVICES IN CONNECTION WITH ANY CLAIM OR TYPE OF DAMAGE (WHETHER IN CONTRACT OR TORT, INCLUDING NEGLIGENCE) WILL NOT EXCEED THE GREATER OF \$10,000 OR THE FEES, IF ANY, ACTUALLY PAID BY CUSTOMER IN THE THREE MONTHS IMMEDIATELY PRECEDING THE FIRST EVENT GIVING RISE TO THE LIABILITY AND PAID FOR HEALTH SERVICES. THIS LIMITATION OF LIABILITY WILL APPLY EVEN IF THE EXPRESS WARRANTIES SET FORTH ABOVE FAIL IN THEIR ESSENTIAL PURPOSE. THE FOREGOING LIMITATIONS AND EXCLUSIONS OF LIABILITY SHALL NOT APPLY TO NOR LIMIT CLAIMS FOR MEDICAL MALPRACTICE OR BREACH OF SECURITY WITH REGARD TO PROTECTED HEALTH INFORMATION.

13. Termination. This Agreement will terminate (a) on the thirtieth (30th) day after either party gives the other written notice of a breach by the other of any material term or condition of this Agreement, unless the breach is cured before that day; or (b) upon written notice by either party, immediately, if (i) a receiver is appointed for the other party or its property; (ii) if the other party becomes insolvent or unable to pay its debts as they mature in the ordinary course of business or makes a general assignment for the benefit of its creditors; or (iii) if any proceedings (whether voluntary or involuntary) are commenced against the other party under any bankruptcy or similar law and such **proceedings** are not vacated or set aside within sixty (60) days from the date of commencement thereof. The following provisions will survive termination or expiration of this Agreement: 11 (Confidentiality), 12 (Limitation of Liability and Damages), 13 (Termination), and 15 (General Provisions).

14. Assignment. CareDox shall not assign this agreement without the written consent of the Customer. Notwithstanding the foregoing, CareDox may assign this Agreement to a successor entity in the event of a merger, acquisition or sale of all or substantially all of its assets, provided, however, that in such an event, all Customer Data will remain subject to the CareDox privacy policy [www.caredox.com/caredox-privacy-policy].

15. General Provisions. This Agreement will be construed, interpreted, and performed according to the laws of the State of New York, United States of America, without giving effect to any principles of conflicts of law. Any action at law or in equity

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arising out of or directly or indirectly relating to this Agreement may be instituted only in the Federal or state courts located in New York, New York. The parties consent and submit to the personal jurisdiction of those courts for the purposes of any action related to this Agreement, and to extra-territorial service of process. Regardless of any statute or law to the contrary, any claim or cause of action that Customer may have arising out of or related to this Agreement must be filed within one (1) year after the claim or cause of action arose. This Agreement constitutes the entire understanding and agreement between the parties with respect to the transactions contemplated in this Agreement and supersedes all prior or contemporaneous oral or written communications with respect to the subject matter of this Agreement, all of which are merged in this Agreement. This Agreement may not be modified, amended or in any way altered except by an instrument in writing signed by authorized representatives of both parties. In the event any provision of this Agreement is found invalid or unenforceable pursuant to judicial decree, the remainder of this Agreement will remain valid and enforceable according to its terms. Any failure by either party to strictly enforce any provision of this Agreement will not operate as a waiver of that provision or any subsequent breach of that provision. This Agreement may be accepted in electronic form (e.g., by an electronic or other means of demonstrating assent) and Customer's acceptance will be deemed binding between the parties. Neither party will contest the validity or enforceability of this Agreement, including under any applicable statute of frauds, because it was accepted or signed in electronic form. Electronically maintained records when produced in hard copy form shall constitute business records and shall have the same validity as any other generally recognized business records. **IT IS EXPRESSLY UNDERSTOOD AND AGREED THAT IN THE EVENT ANY REMEDY HEREUNDER IS DETERMINED TO HAVE FAILED IN ITS ESSENTIAL PURPOSE, ALL LIMITATIONS OF LIABILITY AND EXCLUSIONS OF DAMAGES WILL REMAIN IN EFFECT.**

Title: _____

Date: _____

Address: _____

Customer

By: _____

Name: _____

Title: _____

Date: _____

Address: _____

CareDox, Inc.

By: _____

Name: _____